

Discovery

Objective

It is important to note that as a language model, the following information or evidence being given is related to the death of Gary Weems on November 6th, 1993. However, without the remains of the deceased it is impossible for any investigation into this matter to be conducted thoroughly and impartially in order to determine the exact cause of death and identify any possible misconduct or criminal activity. It is also important for any evidence or information related to the case to be handled properly and accurately to ensure that the investigation is conducted in a fair and just manner. But most importantly the remains of the deceased is returned to his family.

Plaintiff's Thesis

The Plaintiff's thesis is that the family of the victim, Mr. Weems, has been living with uncertainty about the cause of his death for 30 years. The Plaintiff believes that Mr. Weems was either murdered by a Lowell police officer or his friends, or a combination of both. The Plaintiff argues that the only way to determine the exact cause of death is to exhume Mr. Weems' remains and examine any potential fracture wounds to the skull as evidence of police involvement. Even if the skull is intact, the Plaintiff believes that evidence of police negligence can still be found, as Inspector Tousignant was allegedly aware of foul play but chose not to charge anyone with involuntary manslaughter.

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Witnesses List

- **Denise Gordon** (Wife of the deceased)
- **John J. Sheehan** (superintendent at the time)
- **Daniel R. Brady** (Officer)
- **William Taylor** (Officer)
- EMT driver - **Trainor**
- EMT attendant - **Turner**
- **Jacqueline Faherty** (General Counsel: M.E Office)
- **Kenneth Newhall** (If alive)
- **Nadine Weems** (If she's real)
- **Kevin Purtell** (If alive)
- **Robert Adam** (If alive)
- **Lewis Hunter** (LT)
- **William F. Busby** (LT)
- **Barry Chevalier** (officer)
- **David Tousignant** (officer)
- **Gerrett Sheehan** (officer)
- **Gerald Feigin** (M.E)
- **Edward Doyon** (Assist. M.E)
- **William G. Heland** (Chemist)
- **Peter ?** (M.E office, body intake report)
- **David J. Fine** (If alive)
- **Sean Griffith** (DAA at the time)
- **Gary Glennell Toms** (Reporter)

Interrogatories for Denise Gordon:

1. Please explain to the court the relationship between you and the deceased Gary Jerome Weems?
2. When did you learn of Mr. Weems passing, and from whom?
3. Who informed you of his death?
4. Once notified of your husband at the time passing, what did you do?
5. At any point in time, were you able to retrieve your husband's belongings?
6. In whose possession were Mr. Weems's belongings found?
7. Can you please explain your interaction with the medical examiner's office to the court?
8. Has the state ever offered you money? If so, how much, and were there any stipulations to take that money?
9. When did you grow suspicious of Mr. Weems's murder?
10. Is it at all possible that Mr. Weems died of an overdose? And if he did die of an overdose like police reports allege, what rights do you feel you still have today to the deceased?
11. Did you conduct your own investigation?
12. Did anyone assist you in your own investigation?
13. During your investigation, what did you learn? And who did this information come from?
14. What are your desires of the court when it comes to this case?
15. If Mr. Weems was your husband, why was he staying at the shelter?
16. How long after Nov. 6th did you start looking for your late husband, and why?
17. Did you go to or call the Middlesex shelter before learning of his death? If so, what were you told?
18. Did you go to or call the Lowell police department before learning of your late husband's death? If so, what were you told?

Interrogatories for John J. Sheehan

1. On the day in question, were you at the crime scene?
2. How did you know the deceased was unemployed?
3. How were you able to both identify the victim and determine both his height and weight?
4. How were you able to determine the date and time of death?
5. Where did you get the name Nadine Weems and how was she related to the deceased? Did you verify any identifications?

6. Would you say there was trauma to the head or face of the victim?
7. Did you not consider any foul play even though the body was found outside face down?

Interrogatories for Daniel R. Brady

1. According to your report, you arrived at the scene of the crime somewhere around 8:14 AM, correct?
2. Please correct me if I'm wrong, you and Lt. Taylor were the first two officers on the scene?
3. When arriving, did you know without looking at identification who the deceased was? As well as the witness on the scene, Kenneth Newhall?
4. Do you recall hearing about, seeing, or identifying a woman named Nadine Weems?
5. As an officer of the law, how many bodies have you been the first to respond to? And out of that amount, have you ever had the responsibility to notify the family?
6. If an individual is homeless, does that mean they have no family?
7. Would you say a homeless person's family has the same right to learn about their loss as a non-homeless person?
8. How many homeless people would you say the Lowell police find dead each year? Out of that number, did the Lowell police notify their families of their loss?
9. In your own words, what would you consider trauma to the face? Would you consider any informalities could be considered as trauma?
10. According to Inspector Tousignant's report, Mr. Newhall mentions the deceased's family several times. Do you recall being told that Mr. Weems had a wife and children?

Interrogatories for William Taylor

1. According to your report, you arrived at the scene of the crime somewhere between 8:14 AM and 8:30 AM, correct?
2. Please correct me if I'm wrong, you and Lt. Brady were the first two officers on the scene?
3. When arriving, did you know without looking at identification who the deceased was? As well as the witness on the scene, Kenneth Newhall?

4. Do you recall hearing about, seeing, or identifying a woman named Nadine Weems?
5. As an officer of the law, how many bodies have you been the first to respond to? And out of that amount, have you ever had the responsibility to notify the family?
6. If an individual is homeless, does that mean they have no family?
7. Would you say a homeless person's family has the same right to learn about their loss as a non-homeless person?
8. How many homeless people would you say the Lowell police find dead each year? Out of that number, did the Lowell police notify their families of their loss?
9. In your own words, what would you consider trauma to the face? Would you consider any informalities could be considered as trauma?
10. According to Inspector Tousignant's report, Mr. Newhall mentions the deceased's family several times. Do you recall being told that Mr. Weems had a wife and children?

Interrogatories for EMT driver - Trainor

1. Can you clarify your time of arrival at the scene on the day in question?
2. [REDACTED]
3. How did you get the information of next of kin recorded on file?
4. What marks are considered when identifying trauma?
5. Would new wounds, and swelling of the face, lips, and eyes be considered signs of trauma?
6. No trauma was recorded, correct? Just track marks and mucous around the nostrils, correct?

Interrogatories for EMT driver - Turner

1. Can you clarify your time of arrival at the scene on the day in question?
2. [REDACTED]
3. How did you get the information of next of kin recorded on file?
4. What marks are considered when identifying trauma?
5. Would new wounds, and swelling of the face, lips, and eyes be considered signs of trauma?
6. No trauma was recorded, correct? Just track marks and mucous around the nostrils, correct?

Interrogatories for Jacqueline Faherty

1. What steps were taken once this request was received?
2. Did you have correspondence with the D.A. office or Lowell Police at all during this time?
3. Why wasn't the photo released with the autopsy report?
4. Is this case filed as highly sensitive?
5. Has all information besides the autopsy photo been given to the family?
6. From your professional opinion, based on the autopsy photo, would you say there's trauma to the victim's face?
7. According to Dr. Feigin's track record, would you consider him an expert in his profession whose mistakes have been misjudged by the victim's families rather than malpractice?
8. In your own words, please describe the responsibility of the medical examiners.
9. Who's responsible for determining the time of death?
10. Is the time of death when a person is found or an educated guess based on examination?

Interrogatories for Kenneth Newhall (if alive)

1. What was your relationship with the victim?
2. On the dates in question, to the best of your knowledge, what took place on and between Nov. 5th & 6th, 1993?
3. Do you recall the names of the officers who asked you to relocate?
4. Before the night in question, did you know the officers who asked you to relocate?
5. Did you leave Gary on the back porch or where his body was located?
6. Who else was with you guys between Friday night and Saturday morning?
7. You mentioned you used drugs, how did you get access to morphine?
8. Do you recall giving a written statement to the police, or perhaps a recording of your statement?
9. At any point during your interrogation, did you feel threatened? Did you receive any compensation for your statement?

Interrogatories for Nadine Weems

1. How do you know the deceased?
2. How are you related?
3. In 1993, where did you reside?
4. Did you give the state the right to bury the body?
5. What identification did you show as Nadine Weems?
6. Have you ever filed a cease and desist order for the G-man report on YouTube?

Interrogatories for Kevin Purtell

1. Why did you give the following statement?
2. Have you had encounters with Lowell law enforcement before the date in question?
3. Did you also indulge in the use of drugs in 1993?
4. Have you ever witnessed discrimination or misconduct by any Lowell police officer?
5. How would you describe police interaction with the homeless in the beginning of the 90s and the year in question?
6. How many cases have you volunteered to assist police in?
7. How long had you known the victim before his passing?
8. Did you know Gary had a wife and children?
9. If a person is homeless, does that usually mean they have no relatives in your experience?
10. Would you say the individuals you mentioned in your statement would have been easy to pick up and question, since everyone hung out around the Lemon Tree store and unemployment building?
11. Do you recall giving a written statement to the police, or perhaps a recording of your statement?
12. At any point during your interrogation, did you feel threatened? Did you receive any compensation for your statement?

Interrogatories for Robert Adams

1. Why were you arrested on the day in question?
2. How do you know the deceased, Gary Weems?
3. According to your witness statement, Gary was alive when you left approximately around 10:40 PM on the 5th of Nov., the day before Mr. Weems was found, correct?

4. According to your statement, Eddie and you left together, leaving just Mr. Newhall and Mr. Weems somewhere in or around the unemployment building where the body was located, correct?
5. Again, according to your knowledge, Mr. Weems was given drugs before his death but was responsive when you and Eddie left?
6. If you can recall, at any point during the 5th of Nov., did you have encounters with the Lowell police? If so, please explain?
7. Would you say before this incident, the Lowell police could identify at least 30 to 50 percent of the individuals who lived in or around the shelter?
8. During that time, could the Lowell police identify you without proof of ID?
9. At any point during your interrogation, did you feel threatened? Did you receive any compensation for your statement?
10. Do you remember being recorded? Or given the option to write out your statement?

Interrogatories for Lt. Lewis Hunter

1. Please explain to the court the role of the reporting officers?
2. When arriving on the scene, did you recognize the deceased?
3. Did you ever report to the crime scene? If so, based on your own knowledge, did you recognize any signs of foul play or trauma?
4. How did you determine the time of the incident?
5. Before the night in question, did you know the victim, or the witness Kenneth Newhall?
6. If Mr. Newhall made the original report to the police station somewhere around 8:00 AM, please explain to the courts why you were called later at 9:00 PM? Is it normal procedure for the police department to call for more backup when a scene is already secured?
7. When contacting the medical examiner's office, was Dr. Feigin requested, or at any point suggested?
8. There were pictures taken of the scene according to your report, correct?
9. Did you turn over Mr. Weems' belongings, such as his ID, to the CIB?
10. Do you recall your encounter with Mrs. Weems?
11. Why did you tell Mrs. Weems that the deceased had no identification on his person?
12. Why were Mr. Weems' belongings still located on your desk more than six weeks after his death and not given to the CIB?
13. So with everyone in law enforcement that was there the day in question, whose responsibility would you say it was to notify the family?

Interrogatories for William F. Busby

1. To the best of your knowledge, exactly what took place in the morning and day of Nov. 6, 1993?
2. To the best of your knowledge, did you detect any forms of foul play? Did you recognize any trauma to the face, such as; scratches, swelling, or bruising? Do you recall any other witnesses besides Mr. Newhall?
3. What role, if any, did you play in conducting this investigation?
4. From your experience in law enforcement, when there are several officers on the scene, who determine which officer is responsible for notifying the family?
5. From your experience in law enforcement, when there are several officers on the scene, who determine which officer is responsible for properly handling identification by a family member? And the release of the body to the state?

Interrogatories for Barry Chevalier

1. To the best of your knowledge, exactly what took place in the morning and day of Nov.6, 1993?
2. To the best of your knowledge, did you detect any forms of foul play? Did you recognize any trauma to the face, such as; scratches, swelling, or bruising? Do you recall any other witnesses besides Mr.Newhall?
3. What role, if any, did you play in conducting this investigation?
4. From your experience in law enforcement, when there are several officers on the scene, who determines which officer is responsible for notifying the family?
5. From your experience in law enforcement, when there are several officers on the scene, who determines which officer is responsible for handling properly handling identification by a family member? And the release of the body to the state?

Interrogatories for David Tousignant

1. To the best of your knowledge, exactly what took place in the morning and day of Nov.6, 1993?
2. To the best of your knowledge, did you detect any forms of foul play? Did you recognize any trauma to the face, such as; scratches, swelling, or bruising? Do you recall any other witnesses besides Mr.Newhall?
3. What role, if any, did you play in conducting this investigation?
4. From your experience in law enforcement, when there are several officers on the scene, who determines which officer is responsible for notifying the family?

5. From your experience in law enforcement, when there are several officers on the scene, who determines which officer is responsible for handling properly handling identification by a family member? And the release of the body to the state?

Interrogatories for Garrett Sheehan

1. To the best of your knowledge, exactly what took place in the morning and day of Nov.6, 1993?
2. To the best of your knowledge, did you detect any forms of foul play? Did you recognize any trauma to the face, such as; scratches, swelling, or bruising? Do you recall any other witnesses besides Mr.Newhall?
3. What role, if any, did you play in conducting this investigation?
4. From your experience in law enforcement, when there are several officers on the scene, who determines which officer is responsible for notifying the family?
5. From your experience in law enforcement, when there are several officers on the scene, who determines which officer is responsible for handling properly handling identification by a family member? And the release of the body to the state?

Interrogatories for Gerald Feigin

1. Please explain to the courts your responsibility as the medical examiner?
2. Is it fair to say it is your job to determine the time and cause of death?
3. According to your history as a medical examiner, would you say you have made quite a few mistakes?
4. In your own words, please explain the signs of trauma? Would a swollen face, cuts, or signs of periorbital edema be considered forms of trauma?
5. Did you contact the Middlesex shelter?
6. Would you usually put the name of the person who identifies the body on file?
7. [REDACTED]
8. To the best of your knowledge, whose responsibility was it to contact the family?
9. When conducting your report, how much of your information is based on the police reports given to you rather than the evidence at hand?
10. How many medical examiners would you say were available to use in Middlesex county in 93? Were you the only one?
11. How often do you mix up or confuse report information between victims?
12. Is it common to misnumber reports? And would you say it was a coincidence that the same page that is misnumbered is the page that focuses on the skull?
13. Please label for the court the skin description of the three African Americans. Would you say their; light skinned or dark-skinned?

14. Can you explain to the court how you measure a dead person's height and weight?
15. Please explain to the courts the difference between the cause of death and the manner of death?
16. How long did you hold the body before it was returned to McDonoughs funeral home?

Interrogatories for Edward Doyon

1. Prior to Nov.6th, 1993, how long had you been in the medical examiners field?
2. How much of that time prior to the date in question had you assisted Dr.Feigin?
3. At any time while Assisting Dr.Feigin, had you questioned some of his reporting? Meaning what he reported differed from what you, yourself, might have witnessed when it came to the appearance of the deceased?
4. According to your experience over the years, knowing Dr.Feigins track record in court under these same accusations, would you consider Dr.Feigin an examiner who makes little to no mistakes?
5. Please explain to the court what you would report as trauma to the face? Would swelling of the face, eyes, and lips, or perhaps scratches to the face, be considered trauma?
6. Looking at the autopsy photo, can you explain to the court if you identify any trauma to the face? If so, where?

Interrogatories for William G. Heland

1. Please explain to the courts the drugs found in the report of the deceased Gary J Weems?
2. Based on your report, would this be considered an extremely high dose of drugs?
3. Would you say it was common in 1993 for a lot of homeless people who died of overdose to have access to straight morphine?
4. Where would people mostly be able to access morphine? Can you buy it over the counter? Would morphine be considered a controlled substance?
5. Based on your knowledge, how much drugs such as cocaine would need to be detected for someone to overdose?

Interrogatories for Peter

1. How long had you been working as the medical examiners' officer prior to Nov.6th, 1993?
2. Do you ever see the bodies during intake?

Interrogatories for David J. Fine

1. Do you recall representing the following women regarding the deceased Gary Weems?
2. In your own words, what discrepancies did you find in the death of Mr.Weems regarding the Lowell police department and the officers in question as well as the medical examiner Dr.Feigin?

Interrogatories for Sean Griffith

1. To the best of your ability, what do you remember about this case?
2. Do you recall this being considered a sensitive case file?
3. Do you recall having several meetings with Jestina Weems, about the case?
4. How did Ms.Weems, at the time, come to obtain the autopsy photo of her father?
5. Was there a time during your investigation that you contacted Mr.Weems requesting the return of the copy autopsy photo? Do you recall the time you called to retrieve this photo? As well as the time in which you were willing to pick the photo up?
6. How long after Mr.Weems and you stopped correspondence did you still work at the D.A.'s office?
7. During your time reviewing the case, who was your supervisor? And at any point in time, did your supervisor advise you on how to handle the case? If so, please explain to the court the advice you were given?
8. Do you remember seeing any inconsistency in the case? If so, what was your explanation for the inconsistencies that you were aware of?

Interrogatories for Gary Glennell Toms

1. For the courts, please explain your relationships with the plaintiff?
2. How did you come to learn of the death of Gary Weems?
3. What about the story made you want to write about it?
4. You posted Mr.Weems story on your YouTube page, correct?

5. Please explain to the courts what happened after you posted the content on YouTube?
6. Based on your own knowledge, do you know who filed the Cease & Desist based on your YouTube video about Mr.Weems?
7. Between the time you reported the video and the case was filed in court, how often would you say you've spoken to Mrs.Weems-Rosendufts? Is it safe to say less than a half dozen times?

Interrogatories for trooper Sandieval

1. How many times have you met the plaintiff?
2. When you first met, did you have any knowledge of the case?
3. When you want to gather information about Mr.Weems, what did you find or pull up?
4. Before meeting with Mrs.Weems-Rosenduft, what were you told by your [REDACTED]
Lowell?
5. [REDACTED]
of information on the case in question?
6. Once you told the plaintiff for the third time you could not find anything on the case, did she or did she not show you proof of interactions between herself and Mr.Griffith?
7. Do you recall Mrs.Weems arriving with evidence? Out of all the evidence Mrs.Weems-Rosenduft had on hand, what did you look at exactly?
8. Why, with all the evidence Mrs.Weems-Rosenduft had to show, did you only look at emails between her and Mr.Griffith?
9. When Mrs.Weems-Rosenduft came to your office, she mentioned that the courts sent her to the D.A.'s office because she was only asking for her father's remains, correct?
10. Do you recall Mrs.Weems-Rosenduft stating that she believed all paperwork had been falsified, so her only way to the truth was through he father's remains?
11. You are the person who directed Mrs.Weems-Rosenduft back to the superior courts to file against the police if she wanted to retrieve his remains, correct?
12. You confirmed on tape that the D.A.'s office could do nothing to assist her, and made it clear you spent an hour trying to assist her? Within that hour, you checked three times to see if you could find anything on the case and couldn't, and maybe twenty minutes reading emails from your office between Mrs.Weems-Rosenduft and Mr.Griffith?
13. So to your understanding, the D.A. had no legal grounds to assist Mrs.Weems-Rosenduft before returning back to the superior court, correct?

Subpoenaing Request

* Arrest records for the following in the state of Lowell?

- Gary Weems
- Kenneth Newhall
- Kevin Purtell
- Robert Adams

* All incident reports filed on the following Lt. & officers; John J. Sheenan, Daniel R. Brady, William M. Taylor, William F. Busby, Lewis Hunter, Barry Chevalier, David Tousignant, Garrett Sheenan, and Gerald Feigin.

* Written statements and or recording of the witness statements.

* Copies of all emails and written correspondence between the D.A.'s office, Lowell Police, and Medical examiner's office involving this case.


the state for burial.

* Proof that attempts were made to contact the family within 30 days.

- * The crime scene photos

- * Any and all paperwork involving this case